

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
RAFAEL SAKAMOTO,

Plaintiff,

-against-

LOUIS GUGLIELMO, CITY OF NEW YORK,

Defendants.
-----X

SUMMONS

Index No.

Date Purch.

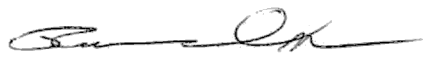
Plaintiff designates New York
County as the place of trial
Basis of Venue: Situs of the
Accident

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your Answer on the plaintiff's attorney(s) within twenty (20) days following service of this Summons, exclusive of the date of service (or within thirty (30) days after service is complete if this Summons was not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
December 19, 2019

Defendants' Address:

GUGLIELMO
38 Park Avenue
Harrison, New York 10528CITY OF NEW YORK
100 Church Street
New York, New York 10007RICHARD M. KASS
Attorney for Plaintiff
299 Broadway, Suite 1700
New York, New York 10007
(212) 374-1144

SUPREME COURT OF THE STATE OF NEW YORK
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RAFAEL SAKAMOTO

Plaintiff,

COMPLAINT

-against-

Index No.
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LOUIS GUGLIELMO, CITY OF NEW YORK

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Plaintiff by his attorney, RICHARD M. KASS, complaining of the defendants, alleges as follows:

FIRST: On December 6, 2018, defendant LOUIS GUGLIELMO owned a 2008 Jeep motor vehicle bearing New York State registration EFK4610.

SECOND: On the aforesaid date, defendant LOUIS GUGLIELMO operated the aforesaid motor vehicle.

THIRD: On the aforesaid date, plaintiff RAFAEL SAKAMOTO was a lawful and proper bicycle rider.

FOURTH: On the aforesaid date, defendant LOUIS GUGLIELMO operated his vehicle on First Avenue and E. 16th Street, County of New York, State of New York.

FIFTH: At the aforesaid date and plaintiff, defendant's vehicle struck the plaintiff.

SIXTH: Upon information and belief, on the aforesaid date, defendant LOUIS GUGLIELMO was employed by defendant CITY OF NEW YORK as a member of the New York City Police Department.

SEVENTH: Upon information and belief, on the aforesaid date and prior to the accident hereinafter described, defendant LOUIS GUGLIELMO had attended a holiday party.

EIGHTH: Upon information and belief, the said holiday party was authorized, organized, held and/or sanctioned by defendant CITY OF NEW YORK, its agents, servants and/or employees.

NINTH: Upon information and belief, at the said holiday party, defendant LOUIS GUGLIELMO was served and consumed excessive amounts of alcoholic beverages.

TENTH: As a result of the foregoing, and on the aforesaid date, defendant LOUIS GUGLIELMO was in an impaired state and unfit to operate a motor vehicle.

ELEVENTH: Defendant CITY OF NEW YORK, through its agents, servants and/or employees, knew of and/or should have known of the impaired state of defendant LOUIS GUGLIELMO.

TWELFTH: Defendant CITY OF NEW YORK, through its agents, servants and/or employees, had both actual and constructive notice of the impaired state of defendant LOUIS GUGLIELMO.

THIRTEENTH: Defendant CITY OF NEW YORK, through its agents, servants and/or employees, allowed defendant LOUIS GUGLIELMO to operate a motor vehicle despite defendant LOUIS GUGLIELMO being in an impaired state due to excessive consumption of alcohol, defendant CITY OF NEW YORK having knowledge of same.

FOURTEENTH: Said accident was due solely to the negligence and carelessness of the defendants.

FIFTEENTH: Solely as a result of defendants' negligence, plaintiff was personally injured, incurred expenses for medical care and treatment, was unable to attend to his usual and customary activities and lost earnings.

SIXTEENTH: Plaintiff has complied with all the conditions precedent to the bringing of this action, and particularly on or about March 1, 2018, and within ninety days after the subject occurrence, plaintiff duly served a written notice of claim upon the CITY OF NEW YORK, pursuant to law, said notice being verified by oath of plaintiff; this action is brought within one year and ninety days after the said occurrence; and more than thirty days have elapsed since service of said notice of claim and said claim remains unadjusted, and defendant refuses to make any adjustment of same; and that on or about May 20, 2019, plaintiff testified at a 50-h hearing.

SEVENTEENTH: Plaintiff sustained a serious injury resulting in basic economic and non-economic loss as defined by Subdivision (d) of Section 5102 of the Insurance Law of the State of New York, and has the right of recovery against defendants herein for personal injuries, and basic economic and non-economic loss as defined in Subdivisions (a) and (c) of Section 5102 of the Insurance Law of the State of New York.

EIGHTEENTH: That this accident falls within one or more of the exceptions set forth in CPLR 1601 and 1602.

WHEREFORE, plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limit of all lower courts that would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
December 19, 2019



RICHARD M. KASS
Attorney for Plaintiff
299 Broadway, Suite 1700
New York, New York 10007
(212) 374-1144

ATTORNEY VERIFICATION

RICHARD M. KASS, an attorney admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury:

That I am the attorney of record for the plaintiff in the within action and have read the foregoing complaint and know the contents thereof: the same is true to my own knowledge except as to the matters therein stated to be alleged on information and belief, and as to these matters I believe it to be true.

That this verification is made by me and not by the plaintiff because I maintain my office outside the county where plaintiff resides or has his principal place of business.

The grounds of my belief as to all matters not stated upon my knowledge are as follows: records and information in my file and conversations with my client.

Dated: New York, New York,
December 19, 2019



RICHARD M. KASS

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